CHAPTER 65 Central Bureau of Investigation

Establishment

The Central Bureau of Investigation (CBI) traces its origin to the Special Police Establishment which was set up in 1941 by the Government of India. The functions of the Special Police Establishment then were to investigate cases of bribery and corruption in transactions with the War and Supply Department of India during World War II. The superintendence of the Special Police Establishment was vested with this War and Supply Department. Even after the end of the War, the need for a Central Government agency to investigate cases of bribery and corruption by Central Government employees was felt. Therefore, the Delhi Special Police Establishment Act was brought into force in 1946. This Act transferred the superintendence of the Special Police Establishment to the Home Department and its functions were enlarged to cover all departments of the Government of India.[1]

The CBI was established in 1963 by a resolution of the Ministry of Home Affairs, Government of India. The Delhi Special Police Establishment was also merged with the CBI and was made one of the divisions of the CBI. Later, the CBI was transferred to the Ministry of Personnel[1a].

The CBI is not a statutory body. It derives its powers from the Delhi Special Police Establishment Act, 1946.

The CBI is the main investigating agency of the Central Government. It plays an important role in the prevention of corruption and maintaining integrity in administration. It also provides assistance to the Central Vigilance Commission and Lokpal.

There is a difference between the nature of cases investigated by the National Investigation Agency (NIA) and the CBI. The NIA has been constituted after the Mumbai terror attack in 2008 mainly for investigation of incidents of terrorist attacks, funding of terrorism and other terror related crime, whereas the CBI investigates crime of corruption, economic offences and serious and organized crime other than terrorism.



It must be noted here that the provisions of the Delhi Special Police Establishment Act (1946) does not enable the CBI to exercise its powers and jurisdiction in any area in a State (not being a railway area) without the consent of the Government of that State. In other words, the jurisdiction of the CBI can be extended to the States only with the consent of the State Government concerned.

Motto, Mission And Vision

The motto, mission and vision of the CBI are as follows[2]:

Motto: Industry, Impartiality and Integrity